

What is cognizable Offence?

In Criminal Procedure Code (CrPC), the offences are divided into two categories; one Cognizable and the other Non-cognizable. Police is empowered to register the FIR and investigate only the cognizable offences. Police can arrest an accused involved in cognizable crime without the warrant from the Court. Theft, robbery, murder and rape are some instances of cognizable offences.

What is Non-cognizable Offence?

The category of offences as per Criminal Procedure Code (CrPC) in which Police can neither register the FIR nor can investigate or effect arrest without the express permission or directions from the court are known as Non-cognizable offences. These mostly include minor offences such as abusing each other, minor scuffles without injuries, intimidation etc. Now, you can also file online complaints. Your complaint shall be referred to the concerned Police Station, where you may be called for further clarification and/or to give statement.

What the Police Station does with a complaint pertaining to Non-cognizable offence?

As per CrPC, Police Station is required to record an abstract of such complaint in the General Diary which is called N.C. and advise the complainant to file the complaint in the concerned court as police is not empowered to initiate action in such matters without the directions of the court. A copy of the entry made in the General Diary may be provided to the complainant free of cost.

What is First Information Report (FIR)?

Report pertaining to occurrence of a cognizable offence, received at the Police Station is called First Information Report, popularly known as FIR. Since it is the first information about the cognizable offence, it is called First Information report. On receipt of this information police registers the report in a FIR Register and begins the investigation of the crime.

What to do if the Police Station refuses to register the FIR?

If the Police Station refuses to register FIR, substance of the information in writing can be sent by post to the Assistant Commissioner of Police or Deputy Commissioner of Police of the respective zone or Commissioner of Police. If satisfied that the information discloses the commission of a cognizable offence, shall get the FIR registered and investigated. If the FIR is still not filed, you may file an RTI OR file a complaint to the State Home Ministry, OR file a private complaint with the Magistrate u/s 190 of CrPC OR file a Vigilance/ Anti-Corruption Complaint against the police officers.

Are any kind of fee or charges to be paid to police for registration of FIR?

Absolutely not. Police is not to be paid any fee or money for registering the FIR and subsequent investigation. If anybody in the police station makes such a demand, a complaint should immediately be made to the senior police officer as mentioned above.

Is the complainant entitled to a free copy of the FIR?

Yes, definitely. As per Criminal Procedure Code (CrPC) it is mandatory on the part of police to provide a copy of the FIR, free of cost to the complainant.

Is it an offence to register/ lodge false FIR?

Yes. Lodging of a false FIR/complaint is punishable under IPC. Such an informant/ complainant can be proceeded against under section 182 IPC or under section 211 of IPC by the police. Private person against whom false FIR/complaint has been lodged can also file complaint in the court for the offence of defamation. Section 182 of IPC states whoever gives any public servant any information which he knows or believes to be false, intending thereby to cause, or knowing it to be likely that he will thereby cause, such public servant:-

(a) to do or omit anything which such public servant ought not to do or omit if the true state of facts respecting which such information is given were known by him, or

(b) to use the lawful power of such public servant to the injury or annoyance of any person.

Shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees or with both.

Illustration

'A' falsely informs a policeman that he has been assaulted and robbed in the neighbor hood of a particular village. He does not mention any name of a person as one of his assailants, but knows it to be likely that in consequence of this information the police will make inquiries and institute searches in the village to the annoyance of the villagers or some of them. 'A' has committed an offence under this section.

Section 211 of IPC states whoever, with intent to cause injury to any person, institutes or causes to be instituted any criminal proceeding against that person, or falsely charges any person with having committed an offence, knowing that there is no just or lawful ground for such proceeding or charge against that person, shall be punished with imprisonment of either description for a term, which may extend to seven years, and shall also be liable to fine.

Are any charges to be paid for getting the injured medically examined or for putting up challan in the court?

No, the entire investigation of the case, including the medical examination of the injured and submitting challan in the court, is part of Government duty for which no charges are levied by the govt. If any demand for money is made at any stage of investigation, a complaint should immediately be made to the senior police officers.

What is a Bailable offence?

In bailable offences, the accused can claim bail as a matter of right. Police is supposed to release such an accused on bail if he is prepared to give bail at any time while he is in the custody of a Police Officer.

What is a Non-Bailable offence?

In non-bailable offences, the accused is not entitled to bail as a matter of right. Police invariably does not take bail in such cases and only the Court grants bail. The list of bailable and non-bailable offences is given in the first schedule of the Cr.PC.

Can the police call someone for investigation, even if granted anticipatory bail by the court?

Yes, certainly. The court only forbids the arrest but does not prevent police from calling the accused for investigation. In fact, invariably it is one of the conditions of the anticipatory bail that the accused shall make himself available for investigation as and when required by the investigating officer. Refusal to do so may entitle the investigating officer to move the court for cancellation of anticipatory bail. In case the investigating officer finds that a criminal case is made out against an accused granted anticipatory bail by the court, he will not arrest him but will release him on bail, even if the offence is Non-Bailable.

What is preventive arrest?

Police is empowered to arrest a person when it is satisfied that doing so is essential in order to prevent occurrence of a cognizable offence. This is the most common situation in which police effects a preventive arrest. Police can also make preventive arrests under special Laws such as National Security Act, PITNDPS etc against dreaded criminals, It is also done under Section 151 of CrPC which states (1) A Police Officer knowing of a design to commit any cognizable offence may arrest, without orders from a magistrate and without a warrant, the person so designing, if it appears to such officer that the commission of the offence cannot be otherwise prevented.

What are the rules for detention of women by the police?

Between 6 pm and 6 am, a woman has the right to REFUSE to go to the Police Station, even if an arrest warrant has been issued against her. It is a procedural issue that a woman can be arrested between 6 pm and 6 am, ONLY if she is arrested by a woman officer and taken to an ALL WOMEN police station. And if she is arrested by a male officer, it has to be proven that a woman officer was on duty at the time of arrest.

When police makes an illegal arrest?

Police officers empowered to investigate a case and file a charge-sheet under Section 173 of CrPC, 1973, are also empowered to make arrests. Whenever police intends to arrest a person, it is obligatory for them to:

- to clearly inform him about the alleged offence-Section 50 of CrPC 1973;

- immediately inform a friend or relative about the arrest and the place of his custody- Section 50-A
- for a bailable offence, the accused must be informed about his right of immediate release on furnishing of bail (surety) (Section 50-A) or by executing a bond (Section 441 of CrPC, 1973) in lieu of bail.

However, if you are illegally arrested, you can make an oral/ written complaint before the local magistrate's court requesting immediate cognizance of the complaint and pointing to illegal confinement of the person by the police.

One can also complain to: State Human Rights Commission, National Human Rights Commission, Supreme Court or to respective high court.

Why Police does not remove encroachments?

Police is not empowered to remove encroachments from public lands under any law, even when complained about. It is the job of the agency entrusted with the administration of the land i.e. Estate Officer, Municipal Corporation, Mumbai. The job of the police is to provide police assistance for maintaining law and order when sought by such agencies.

Why Police does not remove Liquor shops when public complains about such shops?

There are two kinds of liquor shops; one licensed by the State Excise Department and second not licensed by the State Excise Department. Police is empowered to take legal action against only those liquor shops, which run without a valid license from the State Excise Department. Only the State Excise Department is authorized to take any action including the cancellation of license of the licensed shops.

How to deal with a dishonored cheque?

One can adopt arbitration proceedings for the recovery of cheque amount. The orders passed by the arbitrators can be enforceable like a decree of the court. A "Summary Suit" can be filed in the high court/district court for the recovery of dishonored cheque amount.

Issue a statutory notice, within 30 days from the date of dishonor, under Section 138 of Negotiable Instrument Act, 1881, followed by filing a criminal complaint to the Judicial Magistrate/Metropolitan Magistrate under Section 200 of CrPC.

If the dishonored cheque was given by an individual or a proprietorship/partnership firm, a notice (not statutory) followed by an "Insolvency Petition" in the high court or in the district court can be filed against that individual/proprietor/partners.

If the dishonored cheque was given by a private or public limited company, a Statutory Notice under Sections 433 / 434/ 439 of the Companies Act, 1956, followed by a "Winding-up Petition" can be filed in the concerned high court against that company.

A complaint under Section 200 of CrPC, 1973, to the Judicial Magistrate/ Metropolitan Magistrate, may be filed for the offence of cheating against individuals/ proprietor/ partners/ officials of the company.

Based on contribution by Adv Shreyas Rao; Money life Foundation and personal experience of the author of this website.

What is Complainant its Importance ?

A complaint means a grievance expressed by a person to state certain things/facts. Any person who has a certain kind of grievance to some fact, condition, state of affairs etc. may put a complaint to Station House Officer within the local jurisdiction of whose police station that incident has occurred. A complaint can be public as well as private in nature. Any person can file a complaint and it is not necessary that only an aggrieved person can file a complaint. Many a times it is seen that in rape cases the victim is often not in a condition to file a complaint due to stress and fear. In such cases, any person having knowledge of incident like parents, relatives, friends etc. are allowed to file a complaint. A criminal case begins from the filing of a First Information Report (FIR). It is the first stage in criminal proceedings. Hence, the importance of a complaint throughout the case can never be under emphasized.

Many a times it is seen that a person is unable to get justice even after setting the criminal law in motion due to not properly mentioning/stating the relevant facts in their complaint. The same even leads to dismissal of the case by the Courts. There are various reasons associated with the fact that why sometimes even genuine complaints fail in the court of law. One such reason is that most of the times the police officials on duty at the time of registering complaint are not themselves vigilant. Second is generally the public misses out important and relevant facts and emphasize on overstating the true facts of the case.

Where to file the Complaint?

The informant/ complainant should go to the police station having jurisdiction over the area (where the offence is committed) and report to officer in-charge/ station house officer. In case information is given on telephone, the informant/ complainant should subsequently go to the police station for registration of F.I.R.

Who is the officer on duty?

If the officer on duty is not present, what are the alternatives to get the paperwork done (complaint, FIR)?

The senior most Police officer available in the Police Station at any point of time, (SHO or his subordinate above the rank of a constable) is the officer-in-charge, or the duty officer.

If the SHO/Inspector is not present, a Sub-Inspector or Head Constable will be the officer-in-charge, who will receive complaint or lodge FIRs.

What to do if the Police Station refuses to register the FIR?

In all cognizable offences it is mandatory on the part of the police station to register the FIR. However, if the Police Station refuses to register the FIR, a complaint shall be made to the senior police officer. The complaint can be made to the Concerned Circle Officer, Addl. SP or the Superintendent of Police of the concerned District. These officers will get the FIR registered and investigated

Are any kind of fee or charges to be paid to police for registration of FIR?

No, Police is not to be paid any fee or money for registering the FIR and subsequent investigation. If anybody in the police station makes such a demand, a complaint should immediately be made to the senior police officers.

It must be filed immediately. If there is any delay, mention it in the form.

If given orally, it MUST be taken down in writing and explained to you by the officer in charge, at a Police Station within the jurisdiction of which the offence has taken place.

Be very specific

- There should be four copies recorded simultaneously with carbon sheets in place.
- It must be recorded in first person. Do check in which language this needs to be done.
- Avoid complicated technical words, terminologies and unnecessary details.
- Try not to overwrite or score out words.
- Ensure that the arrival/departure time is mentioned in the F.I.R and in the Daily Diary (DD) Register at the Police Station

It must contain authentic information, including these necessary bits of information:

What information do you want to convey?

–In what capacity are you providing the information?

–Who is the perpetrator of the crime?

–Who has the crime been committed against – victim /complainant?

–When was it committed (time)?

–Where was it committed (specific place /locality/area)?

–Why do you think it was committed?

–Which way (actual process involved) was it committed?

–Were there any witnesses? (Names will be required here.)

–What were the losses? (Money /valuables/ possessions /physical damage etc.)

– What were the traces at the scene of the crime? (Weapons/evidence if any.)

After completion, you MUST carefully read the document and sign it.

It must be recorded by the officer in the book maintained for this purpose by the State Government.

You have the right to and must get a copy of it for your records. You are not required to pay for the same.

You are not required by law to give an affidavit.

Never file a false complaint or give wrong information to the police. You can be prosecuted under law for giving wrong information or for misleading the police.—[Section 203, Indian Penal Code 1860]

Having known all these facts, we can generally succeed in a court of law by simply putting in required information and get the accused behind the bars.